

Calendar Line 13

Danea Burleson vs Bay Area Ketamine Center, Inc. et al.
25CV469611

BACKGROUND

Plaintiff, a former patient and former employee of Defendant, moves for a protective order restricting Defendant's communications with Plaintiff and Plaintiff's counsel, and further seeks sanctions under Code of Civil Procedure sections 128.5, 128.7, and 2023.030. Defendant, in propria persona, opposes and argues the motion is procedurally improper and must proceed under Code of Civil Procedure section 527.6.

LEGAL STANDARD

Defendant's reliance on Code of Civil Procedure section 527.6 is misplaced. That statute governs standalone civil harassment restraining order proceedings and is not a prerequisite to issuance of a case-management protective order within pending civil litigation. The Court has broad authority to control proceedings and regulate litigant conduct under Code of Civil Procedure sections 128, subdivision (a)(3) and (a)(5), and 187, as well as authority to issue protective orders to prevent harassment, annoyance, and undue burden, including under section 2017.020 where appropriate. Defendant's procedural objection is therefore overruled.

ANALYSIS

The Court finds good cause for a narrowly tailored protective order. The record reflects ongoing direct communications from Defendant to Plaintiff despite Plaintiff's representation by counsel, including communications that are not necessary to the litigation and are reasonably characterized as harassing or inappropriate in tone. The Court finds that restrictions on direct party-to-party contact are necessary to preserve orderly litigation and protect Plaintiff from improper contact.

The Court further finds it appropriate to regulate Defendant's communications with Plaintiff's counsel to the extent such communications occur, limiting them to those expressly permitted by law or court order and requiring that any such communications be professional and limited to legitimate litigation matters.

SANCTIONS

Plaintiff's request for sanctions under Code of Civil Procedure sections 128.5, 128.7, and 2023.030 is denied without prejudice. While the Court does not impose sanctions at this time, the Court expressly admonishes Defendant that the conduct at issue is improper; future violations may result in sanctions or other corrective orders.

IT IS HEREBY ORDERED:

1. Defendant shall not directly contact Plaintiff in any manner, including email, telephone, text message, written correspondence, or in person. All communications shall be directed through Plaintiff's counsel.

2. Defendant shall not contact Plaintiff's counsel directly except as expressly permitted by law or court order. Any permitted communications shall be limited to legitimate litigation matters and conducted in a professional manner.
3. Defendant is ordered to cease and desist from harassing, threatening, intimidating, or abusive communications directed to Plaintiff or Plaintiff's counsel in connection with this action.
4. Plaintiff's request for sanctions is DENIED WITHOUT PREJUDICE.
5. Defendant is admonished that future violations of this order may result in sanctions or other appropriate court action.
6. This order is issued pursuant to Code of Civil Procedure sections 128, subdivision (a)(3) and (a)(5), 187, and 2017.020 (to the extent applicable), and remains in effect pending further order of the Court.

Plaintiff to prepare the order accompanied by Form EFS-020 within 7 days of hearing.

Calendar Line 14

Case Name: *Immigration Resettlement and Cultural Center, Inc. v. Cuong Nguyen, et al.*

Case No.: 25CV472916

Plaintiff Immigration Resettlement and Cultural Center, Inc. (“Plaintiff,” or “IRCC”) alleges Defendants Cuong Nguyen, Nhut Ho, Tue Quang Phan, Hong Cao, and My Linh Pham, and Does 1 through 50 inclusive (collectively, “Defendants”) improperly represented themselves as the Board of Directors of IRCC, leading to the continued closure of the Viet Museum, the disruption of funding, and harm to the community for which no adequate remedy at law exists. Presently before the court is Defendants’ demurrer to Plaintiff’s First Amended Complaint (“FAC”).

As discussed below, the court **OVERRULES** the demurrer.

I. BACKGROUND

IRCC was founded in 1980 as a nonprofit community-based organization located in San Jose, California. (FAC, ¶ 5.) IRCC provides services and programs to the community in Santa Clara County, primarily to persons of Vietnamese origin, and also runs the Viet Museum in San Jose History Park. (FAC, ¶¶ 5, 6.)

Loc Vu (“Vu”) was the founder of the IRCC and, until January 16, 2025, the President and Executive Director. (FAC, ¶ 7.) The bylaws of the IRCC, specifically Article III, Section 3, entitled “Method to Elect Board of Directors,” prescribe that each year, at the annual meeting, the members vote on the Board of Directors. (FAC, ¶ 8.) The same bylaws state in Section 4 that the President must preside over every meeting of the members and the Board of Directors of the IRCC. (FAC, ¶ 9.) In June 2024, Vu informed Defendants that Santa Clara County had given IRCC a sizable grant of approximately \$55,000.00. (FAC, ¶¶ 10; 15.) Vu also informed Defendants that he, as Executive Director, did not think Defendant Hong Cao (“Cao”) was the right person to take over for him and he wanted to place Cao on leave for two months from his position as director of operations of the Viet Museum. (*Ibid.*) Vu also told Defendants that he “strongly objected to actions the group wanted to take that would violate the By-Laws and dishonor the organization.” (*Ibid.*)

Defendants began meeting in secret, without Vu, in violation of IRCC’s bylaws, and decided to open a new bank account to hold the grant funds without Vu’s knowledge. (FAC, ¶¶ 11, 12.) On July 19, 2024, Cao filed a Statement of Information with the California Secretary of State, listing himself and others² as directors without lawful election by the membership. (FAC, ¶ 13.) Cao and Defendant Nhut Ho (“Ho”) “submitted to Santa Clara County accusations” that Vu was misappropriating or mismanaging funds. (*Ibid.*)³

On August 16, 2024, Defendant Cuong Nguyen (“Nguyen”) informed the County of Santa Clara⁴ that “the existing IRCC Bank of America account had been closed and directed

² The FAC does not specify who the “others” listed as directors of IRCC in the Statement of Information are.

³ The FAC does not identify the County representatives or entities that Cao and Ho corresponded with or the context of that conversation.

⁴ Again, it is unclear who Nguyen communicated to in the County or the context of that conversation.